

24SMCV03549 24SMCV03549

County: los-angeles

Division: Civil Law and Motion

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Case Number: 24SMCV03549 Hearing Date: August 17, 2026 Dept: P

Tentative

Ruling

Halee

Dion v. General Motors, LLC, Case No. 24SMCV03549

Plaintiff

Halee Dion's Motion for Attorney Fees

Hearing

Date: August 17, 2026

Background

This is a

lemon law case. Plaintiff Halee Dion ("Plaintiff") brought suit against Defendant General Motors, LLC ("Defendant") alleging Defendant's failure to repair or re-purchase Dion's 2023 Cadillac CT5's defects, including transmission and engine issues. (Complaint, ¶ 12.)

On July 24,

2024, Plaintiff filed the complaint. On August 28, 2024, Defendant answered.

In October

2025, both parties filed pre-trial motions in limine.

On October

30, 2025, Plaintiff filed a Notice of Settlement of Entire Case.

On March 10, 2026, Plaintiff filed a motion for attorneys' fees. On August 4, 2026, Defendant filed its opposition. August 10, 2026, Plaintiff filed a reply.

Motion for Attorney's Fees

A prevailing buyer in an action for damages and other legal remedies should receive full compensation of reasonable sums expended in pursuit of their claims against manufacturers who failed to comply with the Song-Beverly Act. (Civ. Code § 1794(d).)

"A trial court assessing attorney fees begins with a touchstone or lodestar figure, based on the 'careful compilation of the time spent and reasonable hourly compensation of each attorney ... involved in the presentation of the case.'" (Christian Research Institute v. Alnor (2008) 165 Cal.App.4th 1315, 1321.) "The reasonableness of attorney fees is within the discretion of the trial court, to be determined from a consideration of such factors as the nature of the litigation, the complexity of the issues, the experience and expertise of counsel and the amount of time involved. The court may also consider whether the amount requested is based upon unnecessary or duplicative work." (Wilkerson v. Sullivan (2002) 99 Cal.App.4th 443, 448.)

Prevailing Party

The parties do not contest that Plaintiff is the prevailing party.

Reasonable Rate

Plaintiff claims fees for four attorneys on this case, Lara Rogers at \$430.00 per hour, Iraidia Gonzalez at \$480.00 per hour, Carey B. Wood at \$560.00 per hour, and Bobby C. Walker at \$440.00 per hour. As well as \$215.00 per hour for Paralegals Destiny Olvera, Robert Aguilar, Silvia Martinez, Susana Alatorre, Cesar Utuy, Isable Garcia, and Maria Chavarin. Lara Rogers performed the vast majority of work on this case with 35.8 hours. Carey Wood performed 7.2 hours, Bobby C. Walker performed 2.2

hours, and Iraida Gonzalez performed 0.8 hours. In light of this, the Court finds the number of attorneys on this case reasonable. Furthermore, all attorneys billed between \$430 and \$560.00 per hour. The Court finds this rate reasonable given the attorneys' qualifications and experience. (Declaration of Carey B. Wood, ¶¶ 12-15.) Plaintiff's counsel has also shown that courts have previously approved their rates varying from \$415.00 per hour to \$540.00 per hour. (Wood Decl., ¶¶ 17-20.)

Reasonable Hours

Plaintiff claims 69 hours litigating this case. Plaintiff also claims approximately an additional 5 hours responding to and hearing this motion. The Court finds 5 hours is excessive for Plaintiff's reply and appearance on this motion and thus reduces these hours to 3 hours or \$1,680.00. Plaintiff claims approximately an additional 5 hours in connection with reviewing Defendant's motion to tax costs, preparing the opposition brief, reviewing Defendant's reply and attending the hearing. The Court finds 5 hours is excessive for Defendant's opposition and appearance and thus reduces these hours by 3 hours or \$1,680.00.

Defendant argues

that the Court should reduce the hours billed by 5.1 for the entries on September 25, September 26, October 1, and October 13 in 2025 regarding a Motion to Compel Further Responses to Requests for Production of Documents, Set One and an IDC statement which were never filed because the parties settled on October 30, 2025. The Court agrees and reduces the hours billed by 5.1 hours or \$2,193.00.

Defendant argues

that Counsel should not recover any of the 0.7 hours counsel billed before the Complaint was drafted and filed such as calls to the client explaining the prelitigation demand. The Court finds that the 0.7 hours billed for communication with the client and reviewing the case for litigation are reasonable. Thus, the Court denies Defendant's request to decrease the hours billed by 0.7 hours.

Defendant argues

that excessive communication was billed and there were duplicative intra-office conferences. The Court does not agree that these communications were excessive or duplicative, and communication is necessary during litigation. Similarly,

Defendant challenges the hours billed by paralegals. However, tasks such as serving, filing, drafting proofs of service, and scheduling the vehicle surrendered are all necessary and reasonably incurred.

Defendant also argues that time for templated motions including the memorandum of costs, motions in limine and trial documents should be reduced. The Court agrees that the motions in limine were template motions and reduces the hours by 2.8 or \$1,568.00.

10% Reduction

Additionally, Defendant requests a 10% reduction of counsel's time because they had eleven timekeepers billing on this matter. As discussed above, the Court does not find the number of individuals working on this matter because the majority of the work performed in this matter was by Lara Rogers who billed 35.8 hours. Thus, the Court denies Defendant's request for a 10% reduction.

Conclusion

Plaintiff's Motion for Attorneys' Fees is GRANTED in the amount of \$23,539.00^[1].

^[1] Plaintiff claimed \$31,323.00 for 79 hours of work (69 hours billed, 5 hours estimated for the reply and appearance on this motion and 5 hours estimated for the opposition to the motion to tax and appearance on that motion). The Court reduced the 69 hours by 10.9 hours (\$6,104.00), the estimated hours for the instant motion by 2 hours (\$1,120.00), and the estimated hours for the motion to tax by 1 hour (\$560.00). With those reductions, Plaintiff is awarded \$23,539.00 in fees.